

Opinion of the Court

the laws’” rather than “‘those who interpret them.’” *Ibid.* (quoting *United States v. Gilman*, 347 U.S. 507, 512–513 (1954)). In most instances, the Court’s precedents now instruct, the Legislature is in the better position to consider if “‘the public interest would be served’” by imposing a “‘“new substantive legal liability.”’” *Schweiker, supra*, at 426–427 (quoting *Bush, supra*, at 390). As a result, the Court has urged “caution” before “extending *Bivens* remedies into any new context.” *Malesko, supra*, at 74. The Court’s precedents now make clear that a *Bivens* remedy will not be available if there are “‘special factors counselling hesitation in the absence of affirmative action by Congress.’” *Carlson*, 446 U.S., at 18 (quoting *Bivens*, 403 U.S., at 396).

This Court has not defined the phrase “special factors counselling hesitation.” The necessary inference, though, is that the inquiry must concentrate on whether the Judiciary is well suited, absent congressional action or instruction, to consider and weigh the costs and benefits of allowing a damages action to proceed. Thus, to be a “special factor counselling hesitation,” a factor must cause a court to hesitate before answering that question in the affirmative.

It is not necessarily a judicial function to establish whole categories of cases in which federal officers must defend against personal liability claims in the complex sphere of litigation, with all of its burdens on some and benefits to others. It is true that, if equitable remedies prove insufficient, a damages remedy might be necessary to redress past harm and deter future violations. Yet the decision to recognize a damages remedy requires an assessment of its impact on governmental operations systemwide. Those matters include the burdens on Government employees who are sued personally, as well as the projected costs and consequences to the Government itself when the tort and monetary liability mechanisms of the legal system are used to bring about the proper formulation and implementation of public policies. These and other considerations may make it less probable